

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRONE CREIGHTON,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CARLOS GOMEZ (shield # 14914)
and LT. ERIC DYM (shield # unknown), POLICE OFFICER
JOHN DOE,

Defendants.

Index No. _____
Purchased 3-21-23

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 21, 2023



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10016
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
TYRONE CREIGHTON

Plaintiff,

Index No.
Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CARLOS GOMEZ (shield # 14914)
and LT. ERIC DYM (shield # unknown), POLICE OFFICER
JOHN DOE,

Defendants.

-----X
Plaintiff TYRONE CREIGHTON, by his attorneys THE LAW OFFICES OF ELLIOT S.
KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this
Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff TYRONE CREIGHTON was a resident of Bronx County, State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER CARLOS GOMEZ (shield # 14914)("P.O. GOMEZ") was and is a police officer employed by the Defendants.
5. At all times hereinafter mentioned, Defendant LT. ERIC DYM (shield # unknown)

(“LT. DYM”) was and is a police officer employed by the Defendants. At all times hereinafter mentioned, Defendant POLICE OFFICER JOHN DOE (“P.O. DOE”) was and is a police officer employed by the Defendants.

BACKGROUND

6. On May 26, 2020, at approximately 9:00 p.m., in the vicinity of 818 Home Street in Bronx County, without just cause or provocation, Defendants, including P.O. GOMEZ, LT. DYM and P.O. DOE, approached Plaintiff and demanded that Plaintiff “back up”. In response, Plaintiff walked backwards.

7. As Plaintiff continued to walk backwards, the Defendants continued to approach Plaintiff and repeatedly demanded that Plaintiff keep “backing up”. Again, Plaintiff complied.

8. Shortly thereafter, without just cause or provocation, a police officer violently pushed Plaintiff, sending him flying backwards.

9. Immediately thereafter, multiple police officers, including P.O. GOMEZ and LT. DYM, rushed toward Plaintiff and threw Plaintiff against a car. The actions of the police caused Plaintiff’s head to strike the car. The police handcuffed and arrested Plaintiff.

10. The police transported Plaintiff to PSA 7. There, one police officer recognized Plaintiff from a prior incident and informed Plaintiff that he was going to make sure that Plaintiff “was the last person to leave the precinct”.

11. Plaintiff received a Summons for Disorderly Conduct. Plaintiff’s phone, with video footage of the incident, was taken by the police. When Plaintiff went to retrieve his phone, he was told that it was “lost.”

12. When Plaintiff appeared in Court on the Summons, Plaintiff was informed that “there was no case in the system”.

PROCEDURAL POSTURE

13. Plaintiff served a Notice of Claim in writing sworn to on Plaintiff’s behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust this claim.

15. This action has been timely commenced.

16. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

17. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

18. Plaintiff sues all Defendants in their capacities.

19. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution were all carried out without a warrant or probable cause.

20. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

21. Prior to May 26, 2020, CITY and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused

the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

22. It was the policy and/or custom of the NYPD and CITY to ignore exculpatory evidence before, during and after an arrest is made.

23. The CITY knew of the improper, unconstitutional and/or illegal police practices of LT. DYM prior to May 26, 2020, yet continued to employ and promote LT. DYM without any discipline and/or retraining and placed him in a position of command where other officers would follow his lead to the detriment of civilian's rights.

24. This practice of retention of "bad" officers was not unique to LT. DYM, and was a practice adopted by CITY and/or NYPD and/or treated with deliberate indifference.

25. In a New York Times article published November 15, 2020 titled A Watchdog Accused Officers of Serious Misconduct: Few were Punished, by Ashley Southwell, Ali Watkins and Blacki Miglozzi, it reported that of the 6900 misconduct charges where the highest level of discipline was recommended, the NYPD ignored 71% of the recommendations and routinely downgraded the charges.

26. The Times article found that after reviewing charges brought against 3,188 officers, the Police Department followed the Review Board's recommendations less than 20% of the time.

27. It is in this atmosphere, which was created, permitted or acted upon with deliberate indifference by CITY, which allowed the constitutional violations of Plaintiff to occur and permitted Defendant officers to act with impunity.

28. LT. DYM, for example, according to data contained in a report from Propublica, had 11 complaints filed against him with CCRB, 26 allegations and 5 substantiated allegations, including several for abuse of authority and discourtesy. According to his CAPSTAT records, he has also been subject of at least 8 lawsuits costing CITY over \$1,000,000.00 in damages. Despite these facts, CITY continued to employ and promote LT. DYM.

29. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

30. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SECOND 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

31. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

32. In arresting Plaintiff, the Defendants acted with malice.

33. The Defendants lacked probable cause to arrest Plaintiff.

34. P.O. GOMEZ and LT. DYM filled out police paperwork related to this incident and said paperwork contained falsehoods and inaccuracies.

35. P.O. GOMEZ and LT. DYM failed to disclose to the Court and prosecution that Plaintiff did not interfere with an arrest or otherwise engage in any criminal conduct.

36. All charges against Plaintiff were sealed.

37. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

38. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS FOR A THIRD CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF
PLAINTIFF'S CONSTITUTIONAL RIGHTS**

39. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

40. Defendants P.O. GOMEZ and LT. DYM caused Plaintiff to apprehend and/or fear unfriendly contact by approaching Plaintiff, pushing Plaintiff, slamming Plaintiff into a car and violently handcuffing Plaintiff.

41. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

42. Defendants P.O. GOMEZ and LT. DYM assaulted Plaintiff in violation of Plaintiff's civil rights.

43. Due to the Defendants' assault on Plaintiff, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND SUPERVISION

44. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

45. Prior to and on or about May 26, 2020, Defendant CITY knew or should have known LT. DYM and P.O. GOMEZ to be unruly and to verbally threaten and to harass other human beings.

46. Defendant CITY negligently hired and trained LT. DYM and P.O. GOMEZ and negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above-stated incident.

47. Plaintiff was caused to sustain serious injuries, including shock and mental anguish; and these injuries and their effects will be permanent.

48. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

49. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

50. The acts of CITY, LT. DYM, P.O. GOMEZ and P.O. DOE complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

51. Plaintiff was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

52. As a result of the foregoing, Plaintiff seeks punitive damages in an amount that

exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

53. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

54. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and /or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by Defendant P.O. GOMEZ, LT. DYM and P.O. DOE.

55. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through their agents, servants, and/or employees, including P.O. GOMEZ, LT. DYM and P.O. DOE, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

56. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents servants, and/or employees, including P.O. GOMEZ, LT. DYM and P.O. DOE, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

57. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

58. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs

above with full force and effect as if each were more fully set forth herein

59. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

60. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

61. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

62. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

63. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR EXCESSIVE USE OF FORCE
AGAINST ALL DEFENDANTS**

64. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

65. All of the aforementioned contact by the officers was committed without Plaintiff's consent.

66. All of the aforementioned contact was unlawful and without privilege.

67. The use of force by the officers was excessive and beyond the means necessary to effectuate Plaintiff's arrest.

68. The officers present failed to intervene, stop, mitigate or prevent the excessive force from occurring, although they were present and had the means to do so.

69. The above actions committed by the Defendants constituted an assault and/or battery through the use of excessive force of Plaintiff. Plaintiff feared further contact and imminent harm and Plaintiff sustained physical and psychological injury.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

70. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

71. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

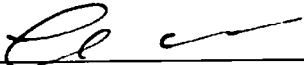
72. Plaintiff therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
March 21, 2023

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10016
212-939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TYRONE CREIGHTON,

Plaintiff

-against-

THE CITY OF NEW YORK,
POLICE OFFICER CARLOS GOMEZ (shield # 14914)
and LT. ERIC DYM (shield # unknown), POLICE OFFICER
JOHN DOE 1,

Defendants
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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
March 21, 2023



ELLIOT S. KAY

